Transcription of: Certificate_of_incorporation_14Jun1989.pdf (3 scanned pages)
Transcribed: October 13, 2026. Verbatim; original wording, spelling, and punctuation preserved.
Marks: [?] uncertain reading · [illegible] unreadable · [handwritten: …], [signature], [stamp: …], [seal: …] non-typed elements · underlined captions shown in **bold**.
See *Transcription Notes* at the end.

[stamp: 8901660031]

[stamp: FILED JUN 15 1989] [handwritten: 9AM] [signature] [stamp: SECRETARY OF STATE]

Certificate of Incorporation of HUNTER'S RIDGE MAINTENANCE ASSOCIATION

First: The name of the Corporation is HUNTER'S RIDGE MAINTENANCE ASSOCIATION, a corporation formed in accordance with the General Corporation Law of Delaware.

Second: The address of the Corporation's registered office in the State of Delaware is Suite 1011, 913 North Market Street, Wilmington, New Castle County, Delaware. The registered agent at such address shall be Robert C. Lefton.

Third: The purpose of the Corporation is to own and provide for the maintenance of certain of those properties situate in Mill Creek Hundred, New Castle County and State of Delaware, known as Hunter's Ridge and more particularly described and set forth in the record major subdivision plan of Hunter's Ridge, prepared by Franco R. Bellefante, Inc., recorded the 12th day of January, 1989, in the Office of the Recorder of Deeds in and for New Castle County, Delaware, in Microfilm Record No. 9600, as amended from time to time, designated on the said plan as "Private Open Space", and as "Traffic Islands", as specifically designated as those areas the maintenance of which is the Corporation's responsibility in those certain Declarations of Paul L. Schlosser and Dorothy J. Schlosser and Granville Development Corporation, dated the 13th day of December, 1988 and recorded in the Office aforesaid at Deed Record Book 815, Page 305, and dated the 19th day of January, 1989 and recorded in the Office aforesaid at Deed Record Book 819, Page 330; to enforce and amend the restrictive covenants affecting the lots owned by its members in Hunter's Ridge; and to transact any other business not inconsistent with the functions of a maintenance corporation and/or civic association in New Castle County, including, without limitation, snow ploughing of the roads.

Fourth: The said Corporation is not a corporation organized for profit, and it shall have no capital stock. The members of the Corporation shall be the owners of those certain lots more particularly so described in the above-recited plan.

There shall be two classes of voting membership as more particularly described in the above-recited Declarations with Class A members, being members other than Granville Development Corporation, a Delaware corporation to have one (1) vote per lot and Class B members, being

Granville Development Corporation, its successors and assigns, to have three (3) votes per lot. "Member" shall mean all owners, as a unit, of any single lot, to the end that there shall be one member per lot.

Fifth: The name and mailing address of the incorporator are as follows:

Terry D. Neal
c/o Robert C. Lefton
Post Office Box 506
Wilmington, Delaware 19899

Sixth: The original by-laws of the Corporation shall be adopted by the incorporator. Thereafter, the power to make, alter or repeal by-laws shall be in the Directors of the Corporation.

Seventh: The business and affairs of the Corporation shall be carried on by a Board of Directors which shall consist of such number of persons elected for such term or terms as may be fixed by the By-Laws as said By-Laws may be amended as therein provided. Any vacancy occurring in the Board may be filled by the remaining members of the Board until the next annual meeting of the members.

Said Board of Directors shall have the power to elect a President, a Vice-President, a Secretary and a Treasurer and such other officers as may be deemed desirable.

At the regular meeting of the Board of Directors preceding the annual meeting of the Corporation, the Board of Directors shall levy an assessment upon lots owned by its Class A members as provided in the above-recited Declaration dated the 19th day of January, 1989, for the purposes of the Corporation.

Eighth: No director of the Corporation shall be personally liable to the Corporation or its members for monetary damages for breach of fiduciary duty as a director, provided, however, that this provision shall not be construed as eliminating or limiting the liability of a director (i) for any breach of the director's duty of loyalty to the Corporation or its stockholders, (ii) for acts or omissions not in good faith or which involve intentional misconduct or a knowing violation of law, (iii) under Section 174 of the General Corporation Law of the State of Delaware, or (iv) for any transaction from which the director derived an improper personal benefit.

The Undersigned, being the incorporator for the purpose of forming a corporation pursuant to Chapter I, Title 8 of the Delaware Code, entitled "General Corporation Law", and the acts amendatory thereof and supplemental thereto, if any, makes and files this Certificate of Incorporation, hereby declaring and certifying that said instrument is his act and deed and that

the facts stated herein are true, and accordingly has set his hand and seal the 14th day of June, 1989.

In the Presence of:
[signature] [signature]

Transcription Notes

- p. 1: "situate", "Bellefante", and "snow ploughing" are as printed.
- p. 2: The assessment paragraph's "above-recited Declaration dated the 19th day of January, 1989" (singular) refers to the Declaration of Restrictions; the earlier "above-recited Declarations" (plural) refers to both recorded Declarations. Both are as printed.
- p. 2: There is no comma after "a Delaware corporation" before "to have one (1) vote"; this is as printed.
- p. 3: Two handwritten signatures appear side by side below "In the Presence of:", with no typed names beneath either; neither can be read, so both are marked [signature].